



Procedure No: EXP202203905 (PS/00567/2022)

RESOLUTION FOR RECTIFICATION OF ERRORS

By means of this resolution, the rectification of the resolution of the procedure PS/00567/2022, dated 03/05/23, instructed against the entity VODAFONE ESPAÑA, S.A.U., CIF: A80907397, is carried out.

FACTS

FIRST: From the examination of the resolution of the procedure PS/00567/2022, dated 03/05/23, the existence of the material error described below is evident:

In section IV of the Legal Grounds, the following is indicated:

IV.-

Sanction

After the evidence obtained, it is considered appropriate to adjust the sanction to be imposed, as it has been verified that the entity Vodafone has regularized the irregular situation regarding the cookie policy of its website, it is deemed appropriate to impose a final sanction of 20,000 euros (ten thousand euros) for the infringement of Article 22.2 of the LSSI, (...)"

The material error occurred when the imposed sanction was transcribed in words, as can be corroborated, in the RESOLVES, the sanction is correctly specified:

"(...) IMPOSING on the entity, VODAFONE ESPAÑA, S.A.U., CIF: A80907397, owner of the website, www.vodafone.es a sanction of 20,000 euros (twenty thousand euros) for the infringement of Article 22.2 of the LSSI (...)"

SECOND: Therefore, in the aforementioned resolution, in section IV (Sanction) of the Legal Grounds, page 31, where it says "20,000 euros (ten thousand euros)" it should say "20,000 euros (twenty thousand euros)".

LEGAL GROUNDS

Article 109.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), empowers Public Administrations to rectify at any time, ex officio or at the request of interested parties, material, factual, or arithmetic errors existing in their acts. Consequently, it is appropriate to rectify the error described in the "Facts" section.

Having regard to the cited provisions and others of general application

AGREES:

FIRST: TO RECTIFY the error detected in the aforementioned resolution PS/00567/2022, dated 03/05/23, identified in the descriptive section of the "Facts," so that in section IV (Sanction) of the Legal Grounds, page 31, where it says "20,000 euros (ten thousand euros)" it should say "20,000 euros (twenty thousand euros)".

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., CIF: A80907397.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6

www.agpd.es

28001 – Madrid

sedeagpd.gob.es

